

24STCV05506 24STCV05506

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-29

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 29, 2026

CASE NUMBER

24STCV05506

MOTION

Motion to Compel Plaintiff's Authorization

MOVING PARTY

Defendant Space

Exploration Technologies Corporation

OPPOSING PARTIES

Plaintiff Michelle Dopak

MOTION

Defendant Space

Exploration Technologies Corporation ("Defendant") moves to compel Plaintiff Michelle Dopak ("Plaintiff") to authorize the release of medical records. Defendant Anthony Brooks joins the motion. Plaintiff opposes the motion.

ANALYSIS

Defendant cites no authority in the notice of motion under which the Court could grant the relief Defendant seeks. The Court cannot grant relief on grounds other than those set forth in the notice of motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].) Defendant's citation to inapplicable statutes in the Civil Discovery Act is unavailing.

Consequently, the Court cannot grant Plaintiff's motion, as it is defective.

Moreover, no provision of the Civil Discovery Act permits one party to compel the other to sign an authorization for the release of records. The Court does not have the power to create additional methods of discovery and will not do so here. (See, e.g., *San Diego Unified Port Dist. V. Douglas E. Barnhart, Inc.* (2002) 95 Cal.App.4th 1400, 1405 [court's inherent power to exercise reasonable control over discovery matters did not authorize it to force a non-propounding party to pay for discovery it chose not to pursue].)

Defendant's reliance on *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913 is misplaced. The Court in that case did not consider the propriety of an order compelling a party to authorize the

release of records. (See id. at p. 918.) “[A]n opinion is not authority for a proposition not therein considered.” (Ginns v. Savage (1964) 61 Cal.2d 520, 524, fn. 2.)

The Court notes, however, were Defendant to serve requests for production of documents on Plaintiff for Plaintiff’s medical records, Plaintiff would be obligated to produce all documents in her “possession, custody, or control . . .” (Code Civ. Proc., § 2031.220.) As Plaintiff can obtain her own medical records, presumably Plaintiff would have to produce such documents in response to a request for production of documents from Defendant.

Defendant is ordered to give notice of the Court’s ruling and file proof of service of same.